

STATE OF NEW YORK

541--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, CUNNINGHAM, SANTABARBARA -- read once and referred to the Committee on Energy -- reported and referred to the Committee on Ways and Means -- recommitted to the Committee on Ways and Means in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law and the public authorities law, in relation to developing microgrids in preparation for extreme weather events and other risks to public security

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 66-x to read as follows:

3 § 66-x. Microgrid development program. 1. Definitions. As used in this
4 section:

5 (a) "community outage asset" means a public or private entity that
6 provides critical services to the public during an extended electric
7 distribution outage. Community outage assets shall include, but are not
8 limited to: telecommunications providers, hospitals, nursing homes,
9 supermarkets, government agencies, transportation systems, gas stations,
10 publicly available electric vehicle charging stations, educational
11 institutions, large multi-family residential housing, wastewater treat-
12 ment facilities, community centers and other customers deemed by the
13 commission to provide a critical service to the public that would
14 promote or enhance health and safety during an outage of the electric
15 distribution system;

16 (b) "extended electric distribution outage" means a total or partial
17 outage of an electric corporation's distribution system that continues
18 for a period of twenty-four hours or longer;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) "uninterrupted" means that the output of the microgrid system is
2 delivered to the end-use customer throughout an extended electric
3 distribution outage, with the exception of momentary interruptions asso-
4 ciated with transitions to and from grid parallel and grid islanded
5 operations; and

6 (d) "microgrid" shall mean a load or group of interconnected loads and
7 distributed energy resources within clearly defined electrical bounda-
8 ries that acts as a single controllable entity with respect to the elec-
9 tric grid. A microgrid can connect and disconnect from the electric
10 grid to enable it to operate in both grid-connected or island-mode.

11 2. On or within one hundred twenty days of the effective date of this
12 section, the commission shall, after a hearing held on notice, adopt an
13 order requiring the New York state energy research and development
14 authority to establish a program to support the development of micro-
15 grids that are capable of providing an uninterrupted supply of power to
16 one or more community outage assets through an extended electric
17 distribution outage, subject to an appropriation therefor. Such program
18 shall include a preference for those microgrids that:

19 (a) maximize annual reductions in carbon dioxide equivalent, oxides of
20 nitrogen, sulfur dioxide and particulate matter emissions achieved rela-
21 tive to marginal grid emissions for the region in which the project is
22 located. For purposes of this section the commission shall define
23 marginal emissions using the same metric or metrics that are used to
24 quantify emissions reductions achieved by other New York state energy
25 research and development authority clean energy programs;

26 (b) displace or otherwise reduce the operation of diesel back-up
27 generators; and

28 (c) are more capable of being expeditiously permitted, interconnected
29 and commissioned in preparation for extreme weather events and other
30 grid related risks.

31 § 2. The public authorities law is amended by adding a new section
32 1020-nn to read as follows:

33 § 1020-nn. Microgrid development program. 1. Definitions. As used in
34 this section:

35 (a) "community outage asset" means a public or private entity that
36 provides critical services to the public during an extended electric
37 distribution outage. Community outage assets shall include, but are not
38 limited to: telecommunications providers, hospitals, nursing homes,
39 supermarkets, government agencies, transportation systems, gas stations,
40 publicly available electric vehicle charging stations, educational
41 institutions, health care providers, large multi-family residential
42 housing, wastewater treatment facilities, community centers and other
43 customers deemed by the commission to provide a critical service to the
44 public that would promote or enhance health and safety during an outage
45 of the electric distribution system;

46 (b) "extended electric distribution outage" means a total or partial
47 outage of the authority's electric distribution system that continues
48 for a period of twenty-four hours or longer;

49 (c) "uninterrupted" means that the output of the microgrid system is
50 delivered to the end-use customer throughout an extended electric
51 distribution outage, with the exception of momentary interruptions asso-
52 ciated with transitions to and from grid parallel and grid islanded
53 operations; and

54 (d) "microgrid" shall mean a load or group of interconnected loads and
55 distributed energy resources within clearly defined electrical bounda-
56 ries that acts as a single controllable entity with respect to the elec-

1 tric grid. A microgrid can connect and disconnect from the electric
2 grid to enable it to operate in both grid-connected or island-mode.

3 2. On or within one hundred eighty days of the effective date of this
4 section, the authority shall establish a program to support the develop-
5 ment of microgrids that are capable of providing an uninterrupted supply
6 of power to one or more community outage. assets through an extended
7 electric distribution outage, subject to an appropriation therefor. Such
8 program shall include a preference for those microgrids that:

9 (a) maximize annual reductions in carbon dioxide equivalent, oxides of
10 nitrogen, sulfur dioxide and particulate matter emissions achieved rela-
11 tive to marginal grid emissions for the authority's service territory.
12 For purposes of this section the authority shall define marginal emis-
13 sions using the same metric or metrics that are used to quantify emis-
14 sions reductions achieved by other New York state energy research and
15 development authority clean energy programs;

16 (b) displace or otherwise reduce the operation of diesel back-up
17 generators; and

18 (c) are more capable of being expeditiously permitted, interconnected
19 and commissioned in preparation for extreme weather events and other
20 grid related risks.

21 § 3. This act shall take effect immediately.